

25LBCV03548 25LBCV03548

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-07-14

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Case Number: 25LBCV03548 Hearing Date: July 14, 2026 Dept: S28

BACKGROUND

On December 30, 2025, Plaintiff Port

Loading Services, Inc. ("Plaintiff" or "PLS") filed a complaint against Defendants Carlos Hernandez, Alliance Specialized Inc. and Terminal Lift Services LLC ("Defendants"), alleging it is the owner of five forklifts which Defendant Hernandez unlawfully removed from its possession.

On February 3, 2026, Plaintiff filed

an ex parte application for writ of possession, which the Court denied, finding it must be heard as a noticed motion.

On April 30, 2026, Plaintiff filed

the operative first-amended complaint ("FAC") after the Court sustained Defendants' demurrer for failing to state in each separately stated cause of action the party against whom each cause of action is directed to.

On May 8, 2026, Plaintiff filed

notice of the instant application for writ of possession.

On May 15, 2026, Plaintiff filed the

instant application.

On June 30, 2026, Defendants filed

opposition.

On July 7, 2026, Plaintiff filed a reply.

DISCUSSION

Applicable

Law

Procedural

Requirements

Pursuant to

CCP §512.010(a), “[u]pon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” However, prior to the hearing required by §512.020(a), the defendant shall be served with all of the following: (a) A copy of the summons and complaint; (b) A Notice of Application and Hearing; and (c) A Copy of the application and any affidavit in support thereof. (CCP §512.030.)

Substantive

Requirements

The

substantive legal requirements to obtain a writ of possession are: (1) plaintiff must show a right to immediate possession of tangible personal property; and (2) plaintiff must show that the property is being wrongfully withheld by the defendant. (CCP

§512.010; *Englert v. IVAC Corp.* (1979) 92 Cal.App.3d 178, 184.) The principal procedural requirements are to show that the claim of right to possession is “probably valid” (CCP §512.040(b)) and to post a bond (CCP §515.010.)

The usual method for obtaining a writ of possession is by an order following a noticed hearing. (CCP

§512.020(a).) The substantive prerequisites for issuance of the writ must be shown at the hearing, and defendant must be given an opportunity to oppose its issuance.

Generally,

the application is based upon the following:

(1) A

statement of facts establishing the right to possession;

(2) A

description and value of the property;

(a) The description must be specific enough
so that the sheriff can identify the property;

(b)

Value is essential for purposes of the bond - i.e., the size of the bond
depends on the property's value;

(3)

Defendant's wrongful detention, the reason therefor and the manner of acquisition; and

(4) The

location of the property.

(CCP

§512.010(b).)

No writ of

possession can issue until plaintiff has filed an undertaking, running in favor
of defendant(s), if return of the property is ordered. (CCP §515.010.) The undertaking must be in an amount equal to
twice the value of the defendant's interest in the property which is determined
by the market value of the property less the amount due and owing on any
conditional sales contract or security agreement and all liens and encumbrances
on the property, and such other factors as may be necessary to determine the
defendant's interest in the property. (Id.). A copy of the undertaking must be attached to
the writ of possession. If the court determines that the defendant has no
interest in the property then there is no requirement for an undertaking. (CCP
§ 515.010(b).)

If the value

of the property is less than the amount due and owing to plaintiff, the Court
shall waive the requirement of the plaintiff's undertaking and shall include in
the order for issuance of the writ the amount of the defendant's undertaking
sufficient to satisfy the requirements of §515.020(b) – i.e., the amount
defendant can pay to prevent plaintiff from taking possession of the property
pursuant to the writ. (CCP §515.010(b).)

Preliminary

Matters

i.

Request

for Judicial Notice

Defendants

ask the Court to take judicial notice of various filings in this matter, which is unnecessary given that they are already part of the Court's record.

Nevertheless, these requests are GRANTED.

Analysis

i.

Procedural Requirements

Defendants argue that the motion is

procedurally defective on its face because in order to obtain a writ of

possession, the FAC must have a cause of action for claim and delivery, and it does not. (Opposition, p. 2.)

Plaintiff argues that the motion is

procedurally proper because the statute does not require a separately titled cause of action labeled "claim and delivery" where the complaint and application show plaintiff's ownership or right to possession, wrongful detention, and the specific property sought. (Reply, p. 3.)

Here, Plaintiff has complied with the procedural

requirements. Defendants put forth no legal authority for the purported rule

that in order to obtain a Writ of Possession, Plaintiff had to allege a cause of action for Claim and Delivery. Defendant refers to CCP §512.010(a) to

support this contention, but the statute sets forth no such cause of action requirement.

Instead, it states that "[u]pon the filing of the complaint or at any time

thereafter, the plaintiff may apply pursuant to this chapter for a writ of

possession by filing a written application for the writ with the court in which the action is brought." (CCP §512.010(a).)

Thus, all

procedural requirements are met.

i.

Substantive
Requirements

The personal property that is the subject of this Application is Lift #106 – Hyundai model 160D-9 forklift, Serial No. HHKHFT23AF0000715 ("Lift 106"). (Miranda Decl., ¶ 3.) PLS seeks prejudgment possession only of Lift #106 at this time because Lift #106 was purchased outright by PLS and is not subject to any financing, lease, rental agreement, lien, or security interest claimed by any Defendant. (Ibid.)

Oswaldo Miranda, the President and sole shareholder of PLS, puts forth evidence that PLS is the purchaser of record on the seller's invoice and payment records. (Miranda Decl., ¶ 6, Ex. A.) From this invoice, it appears that PLS paid the full purchase price of approximately \$207,643.56 for Lift 106 using PLS funds. (Ibid.) Lift 106 was not financed, and no Defendant is listed as a purchaser, owner, or lienholder. (Ibid.)

As to Defendant's wrongful detention of the forklift, the reason therefor and the manner of acquisition, Mr. Miranda declares that in or around 2020, Defendant Carlos Hernandez assisted him in the early stages of forming PLS as part of an agreement in which PLS would refer trucking jobs to his business, Alliance Specialized, Inc. (Miranda Decl., ¶ 4.) Mr. Miranda declares that at no time did Mr. Hernandez acquire any ownership interest in PLS or in any PLS equipment, including Lift 106. Despite this, on or about October 27, 2025, Mr. Miranda declares that Mr. Hernandez caused Lift 106 to be removed from PLS's possession without PLS's consent. (Id., ¶ 9.) The lift was stored at 1525 Pier F Ave #206, Long Beach, CA 90802. (Ibid.) Mr. Miranda declares that Lift 106 was taken without any court order, lien foreclosure, or legal process and the lift is currently stored at Defendants' place of business, 2827 Norton Ave, Lynwood, CA 90262, or the storage yard located at 1525 Pier F. Ave, Berth 206, Long Beach, CA 90802. (Ibid.)

In opposition, Defendant Carlos Hernandez declares that he is a 50% shareholder, Director, Chief Financial Officer and owner of Plaintiff's company, which he argues entitled him to operate the forklift and park it when he determined it was dangerous to operate due to balding tires. (Hernandez Decl., ¶ 2.) Mr. Hernandez's declaration puts

forth the following evidence in opposition to rebut Defendant's claim of wrongful detention:

1. Exhibit A: Port Loading Services, Inc.'s 2020 tax documents indicating that Mr. Hernandez executed the company's taxes as President of Port Loading Services, Inc., and Schedule E of 2020 corporate tax return indicating that both Mr. Hernandez and Mr. Miranda are equal shareholders with 50% interest in the company;
2. Exhibits B-D: The 2021, 2022, and 2023 corporate taxes for Port Loading Services, Inc. which confirm that Mr. Hernandez and Mr. Miranda were continually listed as 50/50 percent equal shareholders in the company;
3. Exhibit E: 6/5/20 Statement of Information electronically signed by Mr. Miranda of PLS indicating that Mr. Hernandez was the Chief Financial Officer and Director of PLS;
4. Exhibit H: Long Beach Police Card that Mr. Hernandez declares was given to him by officers who came to the scene to monitor his removal of the forklift on October 27, 2025.

In reply, Plaintiff argues that these tax documents do not issue stock, transfer stock, create a lien in corporate assets, or give Hernandez a right of possession in Lift #106. (Reply, p. 5.)

Here, Defendant has rebutted Plaintiff's claim for wrongful detention at this stage such that Plaintiff has failed to establish the probable validity of the claim to possession. Defendant puts forth evidence that he was held out to be a joint shareholder, president, CFO and director of the company on multiple tax records. Further, despite Plaintiff's contention that Mr. Hernandez acted with no legal right of removal, Mr. Hernandez puts forth evidence that the forklift was obtained with police present who determined that he had a right to remove the forklift.

CONCLUSION

The Court DENIES Plaintiff's application for writ of possession.

Moving

Party to give notice.

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